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implement the 10 per cent EWS quota the BJP had brought in 2019—i.e. reservation in jobs and educational institutions for economically weaker sections—"for all castes and communities without discrimination." It goes unstated, but 'communities' will be commonly understood as clear verbal signalling at a spectrum that includes Muslims. The other red flag the PM raised, and a BJP chorus echoed, was on a purported Muslim-specific clause in the award of government contracts. The Congress counters that all it promises is a safeguard against anyone being unfairly denied such contracts, something it accused the BJP government of doing. The Congress manifesto reads, "We will ensure that the minorities receive their fair share of opportunities in education, healthcare, public employment, public works contracts, skill development, sports and cultural activities without discrimination."

THE MUSLIM QUOTA

Historically, Muslim quotas are as old as quotas in India—beginning from the very first formal reservation, in 1874 Mysore. Thereafter, acknowledging Muslim backwards as part of the backwards spectrum has been the logic followed by several established layers of Indian law. It is mandated by Article 16(4) of the Constitution, was endorsed by the Indra Sawhney judgment and is reflected in the central list of scores of Muslim OBC communities for various states. This is followed in at least a dozen states and Union territories—states have their own lists with more communities. The constitutional logic is clear: every OBC quota inclusion is on a socio-economic basis, groups/castes qualify on account of their backwardness. This applies equally to Muslims, and hence it pertains to the Ajlaf (backward) segment of the Pasmandas. Equality laws, by implication, forbid religion-based quotas.

Curiously, this proscription has come to block the entry of the Arzal (Dalit) segment of Pasmanda Muslims—along with Christian Dalits—into Scheduled Caste quotas, although the socio-economic argument for their inclusion is identical, often more forceful. Dalits of non-Hindu faiths seen as 'Indic' are conferred with these benefits. Unlike with Muslim OBCs, the conceptual terrain enclosed by the Hindu *jaati* system is allowed play here and the question posed is whether a Dalit escapes Dalithood after conversion—but posed only in the case of Islam and Christianity. But with OBCs, religion does not enter the definitional field. Says Congress leader Veerappa Moily, who evolved the Muslim quota in Karnataka while he was CM circa 1992 (though it was the subsequent Deve Gowda regime that notified it): "The BJP calls it 'religious' reservation...we never meant it as that. On the Chinnappa Reddy commission report, I said mixing up the quotas for Muslim and Hindu backwards would do justice to neither. Acknowledging Muslim backwards is nothing new. Even under the Mysore maharaja in 1918, the Miller Committee categorised them as such."



> "IN HIS 1961 LETTER TO CHIEF MINISTERS, NEHRU ARGUED AGAINST CASTE-BASED RESERVATIONS, SAYING THEY LEAD TO INEFFICIENCY AND SECOND-RATE STANDARDS"
>
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A legal tangle blocks Muslim quotas in Andhra Pradesh and Telangana. In the first case, the dispute first arose because the entire Muslim community was classified as 'backward'—including elite castes like Syeds, Pathans etc.—for the purpose of a 5 per cent quota. The latter one relates to a separate 12 per cent quota that would have necessitated breaching the 50 per cent overall ceiling. Another thorny issue the BJP is banking on is whether quotas for Muslim OBCs eat into the reservation pie. Nothing in OBC reservation law stipulates that 'backwardness' is to be mapped solely among Hindus. At the same time, politically, this can be a polarising issue if bias is perceived: the hot potato detonated in Mamata's Bengal precisely because, of the 180 castes included in its OBC list so far, 118 were Muslim. Kerala pegged it at 10 per cent during state formation in 1956. After a tangled legal journey since the 1970s, Karnataka allotted 4 per cent in 1994. Tamil Nadu has had 3.5 per cent since 2007. The 'Mulla Jats' of Haryana were among the six groups allocated a 10 per cent quota in 2016, along with Hindu and Sikh Jats, but that ran headlong into legal coma, as collateral damage. Muslims have been included under OBCs/ EBCs in Bihar since the Karpoori Thakur regime of the